

Badri Prasad v. State of U.P. & Anr.

High Court of Judicature at Allahabad · Division Bench · 20 July 2010 · WRIT - C No. - 41730 of 2010 · **Writ disposed of; petitioner relegated to CGRF under clause 7.10.**

HEADNOTE

A writ raising disputed facts in an electricity supply dispute was not entertained on merits. The High Court held that the relief could be gone into by the Consumer Grievance Redressal Forum under clause 7.10 of the Electricity Supply Code, relegated the petitioner to apply there, directed the Forum to adjust deposits already made, and left restoration of supply to be considered after deposit of the amount directed by the Forum, in accordance with law.

FACTUAL SUMMARY

Badri Prasad filed a writ in the Allahabad High Court against the State of U.P. through the District Magistrate, Aligarh, and another respondent, seeking relief in an electricity supply dispute. He had already made deposits. The petition turned on disputed questions of fact, including restoration of supply. The Court did not examine the merits of the bill or disconnection and sent him to the Consumer Grievance Redressal Forum.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF as forum for supply grievances; writ declined for disputed facts

HOLDING

Relief sought in the writ can be gone into by the Consumer Grievance Redressal Forum under clause 7.10 of the Electricity Supply Code. The petitioner is relegated to apply to the Forum. Without expressing any opinion on merits, the Court declined to interfere because disputed questions of fact were involved. Deposits already made shall be adjusted by the Forum, which shall also consider restoration of electricity after deposit of the amount it directs, in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ELECTRICITY DISPUTE, INCLUDING RESTORATION OF SUPPLY

No opinion expressed on merits; disputed questions of fact left to the Forum. ¶ 1